

Mohd. Kalim alias Guddu Khan v. State of U.P. & Others

Allahabad High Court (Lucknow Bench) · Division Bench · 6 December 2022 · Writ - C No. 8747 of 2022 · **Writ disposed of; Clause 6.8(v) inspection report to be served, with a supplementary reply, hearing and final assessment; new connection refused until premises dues are decided**

HEADNOTE

Clause 6.8(v) of the U.P. Electricity Supply Code, 2005 requires the inspection report to indicate the evidence that unauthorised use of electricity was found, to record the details of that evidence, to be signed by each member of the inspection team, and to be handed over to the consumer or his representative at the site immediately under proper receipt. Its purpose is to enable an adequate reply to the provisional assessment; the clause conforms to natural justice, the inspection note being the very basis of that order. Where it is admitted that the report of the raid was not provided to the petitioner before the provisional assessment dated 15.12.2020 was passed and served, affixture on the premises and a reply by the predecessor-in-interest (who said he had sold the house by sale deeds dated 13.01.2016 and 05.09.2019) do not meet that requirement. The Court did not quash the provisional assessment: the petitioner had already replied and final assessment was underway. It directed that the inspection note be served under Clause 6.8(v), personally or, if personal service is not possible, by registered post, which is deemed sufficient; that a supplementary reply be filed within 15 days of service or of dispatch, whichever is later; that the petitioner be heard on a date intimated by registered post; and that a final assessment then be passed and any sum found due realized from him in accordance with law. If he files no additional reply or does not appear, that benefit is lost and the licensee may proceed. A mandamus for a new connection at House No. B5, directly from the line running parallel to the house, cannot be granted until the electricity dues on the premises are decided. The Court did not decide whether unauthorised use was made out, or the quantum of the assessment.

FACTUAL SUMMARY

Mohd. Kalim alias Guddu Khan filed Writ-C No. 8747 of 2022 in the Allahabad High Court at Lucknow against the State of U.P. and others, including Mandhyanchal Vidyut Vitran Nigam Limited. He asked for a new electricity connection at House No. B5 and for quashing of notice No. 5231/Vivikh/BKT/Lesa dated 15.12.2020. The Court treated that notice as a provisional assessment for unauthorised use of electricity.

Relying on Clause 6.8(v) of the U.P. Electricity Supply Code, 2005, he said the inspection report — required to record the evidence of unauthorised use, to be signed by the inspection team and to be handed over at the site — was not served on him before that order. He was not living at the premises when the raid took place. The licensee said the report had been affixed there, and that the predecessor-in-interest, on being served with the provisional assessment, replied that the premises had been sold to the petitioner by sale deeds of 13.01.2016 and 05.09.2019. The petitioner had already replied, and the final assessment was in progress.

REUSABLE CONSTRUCTIONS

1. Clause 6.8(v) of the U.P. Electricity Supply Code, 2005 requires the inspection report to indicate the evidence of unauthorised use of electricity, to record the details of that evidence, to be signed by each member of the inspection team, and to be handed over to the consumer or his representative at the site immediately under proper receipt. ¶ 4
2. The purpose of furnishing the Clause 6.8(v) inspection report is to enable an adequate reply to the provisional assessment. The clause conforms to natural justice, because the inspection note is the very basis of that order, and without it the consumer cannot reply adequately. ¶ 6
3. Affixture of the inspection report, and a reply by a predecessor-in-interest who says he has sold the premises, do not establish that the report was furnished to the purchaser. Where it is admitted that the report was not provided to that person before the provisional assessment was passed and served, it must still be served on him — personally or, if personal service is not possible, by registered post, which is deemed sufficient — and he must have a supplementary reply and a hearing before the final assessment.

4. Failure to furnish the Clause 6.8(v) inspection report does not require the provisional assessment to be quashed where the consumer has already replied and final assessment is underway. The cure is service of the report, a supplementary reply within fifteen days of service or of registered-post dispatch, whichever is later, and a hearing on a date intimated by registered post, after which any sum found due is realized in accordance with law. If no additional reply is filed or the consumer does not appear, that benefit is lost and the licensee may pass the final assessment. ¶ 9-12
5. A mandamus for a new electricity connection at the premises will not be granted until the electricity dues on those premises are decided. ¶ 3

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8(v)

Inspection report under Clause 6.8(v) must be furnished before an adequate reply; non-furnishing is cured by service, a supplementary reply and a hearing, not by quashing

QUESTION

Where the inspection report required by Clause 6.8(v) was not provided to the consumer before a provisional assessment for unauthorised use, must that assessment be quashed?

HOLDING

No. Clause 6.8(v) requires the inspection report to indicate the evidence of unauthorised use, to record the details of that evidence, to be signed by each member of the inspection team, and to be handed over to the consumer or his representative at the site immediately under proper receipt. On a perusal of Clause 6.8, the Court held that the purpose of furnishing that report is to enable an adequate reply to the provisional assessment, and that the clause conforms to natural justice, because the inspection note is the very basis of the provisional assessment. It was admitted that the report of the raid was not provided to the petitioner before the provisional assessment dated 15.12.2020 was passed and served, although the licensee said the report had been affixed on the premises and that the predecessor-in-interest, on whom the provisional assessment was served, had replied that he sold the premises by sale deeds dated 13.01.2016 and 05.09.2019. The petitioner had already filed a reply and final assessment was going on. The Court did not quash the order. It directed the licensee to serve the inspection note under Clause 6.8(v), personally or, if personal service is not possible, by registered post, which is deemed sufficient service. The petitioner is to file a supplementary reply within 15 days of service or of that dispatch, whichever is later. The authority is then to hear him on a date intimated by registered post, pass a final assessment, and realize from him any amount found due, in accordance with law. If he files no additional reply or does not appear, the benefit of the order is not available and the licensee may pass the final assessment and realize the sum found due. ¶ 4-6, 8-12

QUALIFIER

The cure assumes that a reply has already been filed and that final assessment is already underway. The Court recorded non-furnishing to this petitioner as admitted; it did not hold that affixture is unlawful in every case.

FLAG Unnumbered order. Paragraph pins are sequential blocks after the coram: 1 heard; 2 prayers; 3 prayer I; 4-5 petitioner on Clause 6.8(v); 6 ratio; 7 petitioner not in residence at the raid; 8 licensee's affixture and the predecessor's reply, and the admission of non-furnishing; 9 reply already filed; 10-12 operative directions (1)-(3). The Court wrote both 'Clause 6.8 (v)' and 'Clause 6.8(v)'. Catalog lists UP-2005::6.8 and lettered subclauses through 6.8(d)(i), not (v); keyed as cited. Cause-title counsel is 'Inam Uddin Ahmed'; the hearing line says 'Inam Uddin Ahmad'. The licensee is spelled 'Mandhyanchal Vidyut Vitran Nigam Limited'.

HOLDING-UNIT · UP-2005::new-connection

Mandamus for a new connection refused while premises dues are undecided

QUESTION

Can the writ court direct a new electricity connection at the premises while the electricity dues on those premises remain undecided?

HOLDING

No. Unless and until the issue of electricity dues on the premises is decided, the prayer for a new connection at House No. B5, directly from the electric line running parallel to the house, cannot be granted. ¶ 3

QUALIFIER

The Court did not decide whether the petitioner would be entitled to a connection, or to supply from that parallel line, once the dues are decided.

FLAG No Supply Code clause was cited for this refusal. Clause 4.3 and Clause 4.3(f) were not invoked. Keyed to the catalog head UP-2005::new-connection. The only ground stated is that the premises dues are undecided.

PRINCIPLE TAGS

6.8-procedure-mandatory Clause 6.8(v) requires the inspection report — evidence of unauthorised use, details recorded, signed by each member of the inspection team, and handed over at the site under proper receipt — to be furnished so the consumer can reply to the provisional assessment. Non-furnishing to the petitioner was admitted, and service was directed before the final assessment. ¶ 4-6, 10

opportunity-before-final-assessment Because the inspection report, the basis of the provisional assessment, had not been given to the petitioner, he was allowed a supplementary reply and a hearing before the final assessment, even though he had already replied and final-assessment proceedings were going on. ¶ 6, 9-11

clause-6.8-hearing-procedure-mandatory-before-uue-conclusion After the supplementary reply, the authority must fix a hearing, intimate the date by registered post, hear the petitioner, and only then pass the final assessment and realize any sum found due. ¶ 11

fresh-objection-under-clause-6.8 The petitioner, who had already replied to the provisional assessment dated 15.12.2020, was directed to file a supplementary reply within 15 days of service of the inspection report or of its dispatch by registered post, whichever is later. ¶ 9-10

new-connection-mandamus-deferred-until-premises-dues-decided The mandamus for a new connection at House No. B5, directly from the line running parallel to the house, was refused for the present. The Court held it cannot be granted until the electricity dues on the premises are decided. No Code clause was cited. ¶ 3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER UNAUTHORISED USE OF ELECTRICITY WAS FOUND, AND THE QUANTUM OF ANY ASSESSMENT

Left to the final assessment after service of the inspection report, a supplementary reply and a hearing. ¶ 11

NOT DECIDED — WHETHER THE PROVISIONAL ASSESSMENT DATED 15.12.2020 WAS LIABLE TO BE QUASHED FOR NON-SERVICE OF THE INSPECTION REPORT

The Court did not quash it. It directed service, a supplementary reply and a hearing while final-assessment proceedings continued. ¶ 9-12

NOT DECIDED — VALIDITY OF THE SALE DEEDS DATED 13.01.2016 AND 05.09.2019, AND WHO OCCUPIED THE PREMISES AT THE RAID

Recorded only as the predecessor's reply, placed before the Court by the licensee. Title and occupancy were not decided. ¶ 7-8

NOT DECIDED — WHETHER THE PETITIONER IS ENTITLED TO A NEW CONNECTION, AND FROM THE PARALLEL LINE, ONCE THE PREMISES DUES ARE DECIDED

Prayer (I) was refused only for so long as those dues remain undecided. ¶ 3